

## SOLVED PRACTICE WORKBOOK

# Gender Discrimination - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

| GENDER DISCRIMINATION                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                          |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Philosophy Optional - Paper II - Socio-Political Philosophy - Topic 9                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                          |
| <b>00 Self / Other Construction</b><br><br>MALE NORM (Self/Subject)<br>defines by negation<br>v<br>FEMALE (constructed as Other)<br>v<br>relational deficit read as 'natural' inferiority                                                                 | <b>01 Performative Repetition Loop</b><br><br>stylised act --> read as natural --> repeated<br>A<br><br>(regulatory norm reinforced each cycle)                                                                                                                                                                            | <b>02 Equality Typology Table</b><br><br>TYPE   REMEDY   RISK<br>formal   equal rule   ignores start-point gap<br>substantive   targeted correction   reverse-discrimination charge<br>relational   restructure relations   hardest to operationalise                                                                    |
| <b>03 Foeticide Causal Chain</b><br><br>son preference (discriminatory attitude)<br>v<br>demand for sex determination<br>(PCPNDT Act 1994 prohibits)<br>v<br>sex-selective abortion --> skewed sex ratio at birth                                         | <b>04 Agarwal's Five-Level Analysis</b><br><br>LEGAL TITLE (recognised in law or record)<br>ACCESS / USE (practical ability to use the asset)<br>CONTROL (decide cropping, leasing, sale or investment)<br>RETURN (receive the income and benefit)<br>EXIT/SECURITY (fall-back protection against abandonment or violence) | <b>05 Indian Legal Instruments on Inheritance -- Status Table</b><br><br>INSTRUMENT   KIND   STATUS<br>Hindu Succession Act 2005 amendment  statute   enacted,<br>coparcenary right<br>Vineeta Sharma v Rakesh Sharma 2020  SC ruling  <br>clarifies retrospective scope<br>Ram Charan & Ors v Sukhram & Ors   SC ruling |
| <b>06 Kabeer's Empowerment Chain</b><br><br>RESOURCES --> AGENCY --> ACHIEVEMENTS<br>(material, ability to (improved<br>human, social) choose & act) functioning)<br>break at any link = no real empowerment gain                                         | <b>07 Legal vs Effective Empowerment Gap</b><br><br>106th Amendment (2023): reservation ENACTED<br>v (conditional on)<br>DELIMITATION (not yet completed)<br>v<br>actual seat allocation / effective representation --<br>PENDING                                                                                          | <b>08 Feminist Schools -- Root-Cause Comparison</b><br><br>SCHOOL   ROOT CAUSE   IMPLICATION<br>marxist   capitalism   end oppression<br>radical   patriarchy (autonomous)   end patriarchy<br>directly<br>socialist   capitalism + patriarchy   must address both<br>systems                                            |
| <b>09 Intersection of Caste and Gender</b><br><br>GENDER axis -----><br>CASTE   low-caste woman: compounded, distinct harm<br>axis   (not simply 'caste harm' + 'gender harm')<br>v<br>single-axis policy (gender-only OR caste-only) misses<br>this cell | <b>10 Okin's Multiculturalism Dilemma Test</b><br><br>group practice claims cultural protection<br>v<br>does it entrench internal gender hierarchy?<br>/\<br>NO YES<br>accommodate equality claim overrides accommodation                                                                                                  | <b>11 PYQ Keyword Router</b><br><br>PROMPT KEYWORD --> PRIMARY SESSION<br>foeticide --> 4<br>land / property --> 5<br>empowerment --> 6 / 7<br>man-made / cultural cat. --> 1 / 2<br>equality vs empowerment --> 3                                                                                                       |

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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# Gender Discrimination - Solved Practice Workbook

## BASIC MCQS / REMEDIATION

### AUTHORED MCQ AND REMEDIATION BANK

**Q1. According to Simone de Beauvoir, which statement best captures the sex/gender distinction?**

- A. 'One is not born, but rather becomes, a woman' -- gender is socially constituted
- B. Sex and gender are identical terms for the same biological fact
- C. Gender is fixed permanently at conception alongside sex
- D. Only men possess a socially constructed gender identity

**Answer: A. 'One is not born, but rather becomes, a woman' -- gender is socially constituted**

**Explanation:** Beauvoir's 'becoming' thesis distinguishes constituted gender from given sex.

**Trap/remediation:** Do not treat sex and gender as synonyms; re-read Session 1's opening distinction.

**Q2. In Beauvoir's Self/Other framework, woman is positioned as:**

- A. the neutral universal Subject
- B. Other, defined relationally against a male norm
- C. an entirely separate, unrelated category
- D. identical to the Subject in all respects

**Answer: B. Other, defined relationally against a male norm**

**Explanation:** The Othering move defines woman only relationally against a male Subject/norm.

**Trap/remediation:** Remember Other is a relational, not an independent, category.

**Q3. The 'biological-difference objection' to the sex/gender distinction claims that:**

- A. gender has no biological basis whatsoever
- B. sex and gender are entirely socially constructed
- C. real physiological differences justify some differential treatment
- D. biological difference proves gender discrimination is illegal

**Answer: C. real physiological differences justify some differential treatment**

**Explanation:** The objection grounds differential treatment in real physiological difference.

**Trap/remediation:** Do not confuse this objection with a claim about legality.

**Q4. The philosophical reply to the biological-difference objection is that:**

- A. biological differences do not exist
- B. differential treatment is always justified by biology
- C. the objection is irrelevant to feminism
- D. difference does not by itself entail unequal social worth

**Answer: D. difference does not by itself entail unequal social worth**

**Explanation:** The reply denies the inference from physical difference to social hierarchy, not the difference itself.

**Trap/remediation:** Do not deny biological difference outright; the reply concedes it and blocks only the inference.

**Q5. Treating woman's subordination as natural rather than social:**

- A. forecloses reform by making inequality appear inevitable
- B. has no consequence for policy
- C. was rejected by Beauvoir as an incoherent idea

D. is the same claim as the performativity thesis

**Answer: A. forecloses reform by making inequality appear inevitable**

**Explanation:** Naturalising subordination stabilises it as unchangeable, blocking reform.

**Trap/remediation:** Keep this consequence distinct from the (later) performativity thesis of Session 2.

**Q6. Judith Butler's concept of 'gender performativity' holds that:**

- A. gender is an inner essence expressed outwardly
- B. gender is constituted through repeated performative acts, with no prior essence
- C. gender is purely biological
- D. performativity means consciously choosing a gender like an actor

**Answer: B. gender is constituted through repeated performative acts, with no prior essence**

**Explanation:** Performativity denies a prior gendered substance behind repeated acts.

**Trap/remediation:** Do not equate performativity with a stage-actor choosing a role; there is no prior chooser.

**Q7. In Gender Trouble, Butler argues gender is produced by:**

- A. a single deliberate performance
- B. genetic inheritance alone
- C. performative repetition of stylised acts within a regulatory frame
- D. state legislation exclusively

**Answer: C. performative repetition of stylised acts within a regulatory frame**

**Explanation:** Repetition within a regulatory, discursive frame constitutes gender on Butler's account.

**Trap/remediation:** A single act is not performativity; repetition is essential.

**Q8. The 'essentialism objection' to Butler's account warns that:**

- A. Butler ignores culture entirely
- B. performativity proves gender is purely natural
- C. repetition theory cannot explain any social change
- D. without a stable pre-discursive subject, feminism may lose 'woman' as a category for solidarity

**Answer: D. without a stable pre-discursive subject, feminism may lose 'woman' as a category for solidarity**

**Explanation:** The objection targets the loss of a stable political subject 'woman.'

**Trap/remediation:** Do not confuse this with a claim that Butler denies culture altogether.

**Q9. Butler's reply to the essentialism objection is that:**

- A. 'woman' can be used provisionally and strategically as a shared discursive position
- B. the category 'woman' must be abandoned entirely
- C. essentialism is actually correct
- D. political solidarity requires metaphysical essence

**Answer: A. 'woman' can be used provisionally and strategically as a shared discursive position**

**Explanation:** Strategic, provisional use of 'woman' preserves solidarity without requiring essence.

**Trap/remediation:** Do not read the reply as abandoning the category outright.

**Q10. A key limitation of performativity theory noted in the socio-political syllabus is that it:**

- A. cannot describe gender at all
- B. explains reproduction of norms better than it explains why particular norms become dominant
- C. was fully resolved by Beauvoir before Butler wrote

D. applies only to men

**Answer: B. explains reproduction of norms better than it explains why particular norms become dominant**

**Explanation:** Structural accounts (Sessions 6-8) supply the missing 'why this norm' piece.

**Trap/remediation:** Do not present this limit as a wholesale rejection of performativity.

**Q11. 'Formal equality' as a remedy for gender discrimination means:**

A. correcting unequal starting points via targeted measures

B. restructuring social relationships directly

C. removing explicit differential legal rules

D. guaranteeing equal outcomes regardless of starting point

**Answer: C. removing explicit differential legal rules**

**Explanation:** Formal equality bars explicit differential rules, nothing more.

**Trap/remediation:** Do not conflate formal equality with substantive correction of disadvantage.

**Q12. 'Substantive equality' differs from formal equality because it:**

A. ignores unequal starting points

B. only applies to men

C. bars any differential rule

D. permits affirmative measures to correct unequal starting points

**Answer: D. permits affirmative measures to correct unequal starting points**

**Explanation:** Substantive equality licenses targeted correction beyond a bare rule-neutrality.

**Trap/remediation:** Distinguish this clearly from formal equality's rule-only focus.

**Q13. The 'reverse-discrimination objection' to affirmative action for women claims that:**

A. such measures unfairly disadvantage men

B. affirmative action is required by formal equality

C. women do not face any disadvantage

D. relational equality is identical to formal equality

**Answer: A. such measures unfairly disadvantage men**

**Explanation:** The objection frames affirmative measures as unfair to men.

**Trap/remediation:** Do not present this objection as claiming women face no disadvantage.

**Q14. The reply to the reverse-discrimination objection argues that:**

A. men are never disadvantaged by any policy

B. correcting a structural disadvantage is not equivalent to creating a new one

C. affirmative action should be abolished

D. formal equality alone suffices

**Answer: B. correcting a structural disadvantage is not equivalent to creating a new one**

**Explanation:** Correcting disadvantage is analytically distinct from creating a new disadvantage.

**Trap/remediation:** Avoid overstating the reply as an absolute denial of any cost to anyone.

**Q15. 'Relational equality' asks specifically whether:**

A. laws explicitly differentiate by sex

B. outcomes are numerically identical

C. social relationships themselves remain hierarchical despite equal formal rules

D. affirmative action has been abolished

**Answer: C. social relationships themselves remain hierarchical despite equal formal rules**

**Explanation:** Relational equality probes the persistence of hierarchy in social relations, beyond formal rules.

**Trap/remediation:** Do not reduce relational equality to a numerical-outcome test.

**Q16. The primary cause of female foeticide, per the syllabus diagnosis, is:**

- A. prenatal diagnostic technology itself
- B. the PCPNDT Act, 1994
- C. Beti Bachao Beti Padhao
- D. son preference, with technology as the instrument

**Answer: D. son preference, with technology as the instrument**

**Explanation:** Son preference is the cause; technology is only the instrument.

**Trap/remediation:** Never name technology as the primary cause -- this is the syllabus's flagged trap.

**Q17. The PCPNDT Act, 1994 is best described as:**

- A. an enacted statute prohibiting prenatal sex determination for selective purposes
- B. a Supreme Court judgment
- C. a constitutional amendment
- D. a scheme launched in 2015

**Answer: A. an enacted statute prohibiting prenatal sex determination for selective purposes**

**Explanation:** PCPNDT is an enacted statute, not a judgment, amendment, or scheme.

**Trap/remediation:** Keep the statute/scheme/judgment categories precise; do not conflate with Beti Bachao Beti Padhao (2015).

**Q18. Amartya Sen's 'missing women' argument uses skewed sex ratios as:**

- A. proof that technology alone causes foeticide
- B. an index of systemic discrimination against women
- C. evidence that no legal remedy exists
- D. a purely economic, non-gendered phenomenon

**Answer: B. an index of systemic discrimination against women**

**Explanation:** Sen treats the skew as an index of systemic, not merely technological, discrimination.

**Trap/remediation:** Do not cite an invented sex-ratio figure; cite only the direction of skew and Sen's argument.

**Q19. Beti Bachao Beti Padhao (2015) functions as:**

- A. the original statute prohibiting sex determination
- B. a Supreme Court ruling
- C. a policy scheme supplementing legal enforcement and awareness
- D. a constitutional amendment

**Answer: C. a policy scheme supplementing legal enforcement and awareness**

**Explanation:** Beti Bachao Beti Padhao is a supplementary policy scheme, not the founding statute.

**Trap/remediation:** Do not confuse this 2015 scheme with the 1994 PCPNDT Act.

**Q20. Continued prevalence of female foeticide despite the PCPNDT Act suggests that:**

- A. the law has had no relevance whatsoever
- B. technology, not attitude, is the cause

- C. son preference has been eliminated
- D. formal legal prohibition has not fully reached the underlying discriminatory attitude

**Answer: D. formal legal prohibition has not fully reached the underlying discriminatory attitude**

**Explanation:** Persistence supports, rather than refutes, the son-preference diagnosis.

**Trap/remediation:** Avoid concluding the law is entirely irrelevant; it is necessary but not sufficient.

**Q21. Bina Agarwal's five-level analysis of land rights consists of:**

- A. legal title, access/use, control, return, exit/security
- B. title, income, marriage, divorce, custody
- C. sex, gender, caste, class, religion
- D. resources, agency, achievements, power, justice

**Answer: A. legal title, access/use, control, return, exit/security**

**Explanation:** The five dimensions are legal title, access/use, control, return, and exit/security.

**Trap/remediation:** Do not substitute Kabeer's resources/agency/achievements terms for Agarwal's analysis.

**Q22. The Hindu Succession Act, 2005 amendment is best classified as:**

- A. a Supreme Court judgment
- B. an enacted statute granting daughters coparcenary rights
- C. a policy scheme
- D. an unimplemented bill

**Answer: B. an enacted statute granting daughters coparcenary rights**

**Explanation:** The 2005 amendment is the enacted statutory source of the coparcenary right.

**Trap/remediation:** Do not cite Vineeta Sharma (2020) as the source statute -- it only clarifies the amendment.

**Q23. Vineeta Sharma v. Rakesh Sharma (2020) is:**

- A. the statute that created the coparcenary right
- B. a constitutional amendment
- C. a Supreme Court judgment clarifying the 2005 amendment's retrospective application
- D. unrelated to inheritance law

**Answer: C. a Supreme Court judgment clarifying the 2005 amendment's retrospective application**

**Explanation:** Vineeta Sharma is a 2020 SC judgment clarifying, not creating, the coparcenary right.

**Trap/remediation:** Keep statute (2005 amendment) and judgment (Vineeta Sharma, 2020) distinct.

**Q24. Holding legal 'title' to land while a male relative retains all decision-making power illustrates:**

- A. full empowerment
- B. the 'exit' rung being satisfied
- C. an impossibility under Indian law
- D. a gap between legal title and actual control/return

**Answer: D. a gap between legal title and actual control/return**

**Explanation:** This is the classic title-without-control gap Agarwal's analysis is designed to expose.

**Trap/remediation:** Do not treat legal title as equivalent to full empowerment.

**Q25. The exit/security dimension in Agarwal's analysis refers to:**

- A. the practical, social ability to leave an unjust household or marriage
- B. the legal title to land

- C. the right to sell land only
- D. a purely symbolic entitlement

**Answer: A. the practical, social ability to leave an unjust household or marriage**

**Explanation:** Exit denotes the practical social capacity to leave an oppressive arrangement.

**Trap/remediation:** Do not confuse exit/security with return, which asks who receives income and benefit.

**Q26. In Naila Kabeer's model, 'agency' functions as:**

- A. a synonym for resources
- B. the necessary intermediate capacity converting resources into achievements
- C. an outcome, not a process
- D. irrelevant to empowerment

**Answer: B. the necessary intermediate capacity converting resources into achievements**

**Explanation:** Agency is the load-bearing link between resources and achievements.

**Trap/remediation:** Do not treat resources and agency as interchangeable terms.

**Q27. Kabeer's empowerment chain is best described as:**

- A. achievements -> agency -> resources
- B. resources alone determine empowerment
- C. resources -> agency -> achievements
- D. a two-step, not three-step, process

**Answer: C. resources -> agency -> achievements**

**Explanation:** The chain runs resources to agency to achievements, in that order.

**Trap/remediation:** Do not reverse the chain's direction or collapse it to two steps.

**Q28. A bank account opened for a woman but controlled entirely by her husband illustrates:**

- A. full empowerment under Kabeer's model
- B. successful conversion of resources into agency
- C. the 'power-within' register only
- D. resource delivery without agency, hence no real empowerment gain

**Answer: D. resource delivery without agency, hence no real empowerment gain**

**Explanation:** A resource without exercised agency fails Kabeer's empowerment test.

**Trap/remediation:** Do not equate resource access alone with empowerment.

**Q29. The four power registers used alongside Kabeer's model are:**

- A. power-over, power-to, power-with, power-within
- B. power-title, power-access, power-control, power-exit
- C. power-formal, power-substantive, power-relational, power-outcome
- D. power-legal, power-social, power-economic, power-political only

**Answer: A. power-over, power-to, power-with, power-within**

**Explanation:** The four registers are power-over, power-to, power-with, and power-within.

**Trap/remediation:** Do not confuse these with Agarwal's five-level land-rights analysis.

**Q30. A critic's objection that Kabeer's model is 'too demanding' is answered by noting the model is:**

- A. a strict pass/fail gate for any policy
- B. diagnostic, locating exactly where an intervention breaks down



- C. irrelevant to policy evaluation
- D. identical to the equality typology

**Answer: B. diagnostic, locating exactly where an intervention breaks down**

**Explanation:** The model diagnoses breakdown points rather than issuing a pass/fail verdict.

**Trap/remediation:** Do not read the model as declaring most policy 'failed' outright.

**Q31. Carol Gilligan's 'ethic of care' is best understood as:**

- A. a purely legal doctrine
- B. identical to Kabeer's resources-agency-achievements model
- C. a moral framework grounded in relational responsibility rather than abstract rights-adjudication
- D. a rejection of all rights-based reasoning

**Answer: C. a moral framework grounded in relational responsibility rather than abstract rights-adjudication**

**Explanation:** Care ethics grounds morality in relational responsibility, supplementing rights-based reasoning.

**Trap/remediation:** Do not present care ethics as a wholesale rejection of rights.

**Q32. The 106th Constitutional Amendment, 2023 provides for:**

- A. immediate, unconditional seat allocation for women
- B. abolition of legislative reservation
- C. land rights for women only
- D. legislative reservation for women whose implementation is conditional on subsequent delimitation

**Answer: D. legislative reservation for women whose implementation is conditional on subsequent delimitation**

**Explanation:** The amendment enacts reservation but ties implementation to a later delimitation exercise.

**Trap/remediation:** Do not describe the amendment as already fully operational in seat allocation.

**Q33. The gap between the 106th Amendment's enactment and its effective implementation illustrates:**

- A. a divergence between legal empowerment and effective/political empowerment
- B. that the amendment has already been fully implemented
- C. that delimitation is irrelevant to its operation
- D. that Gilligan's care ethic is inapplicable to representation

**Answer: A. a divergence between legal empowerment and effective/political empowerment**

**Explanation:** This mirrors the title-without-control gap seen in land rights, at the political level.

**Trap/remediation:** Do not treat legal enactment as equivalent to effective empowerment.

**Q34. An objection to care ethics is that it risks:**

- A. eliminating rights-based reasoning permanently
- B. re-inscribing women into the very caregiving role that trapped them in unequal labour
- C. proving too little about moral reasoning
- D. being identical to formal equality

**Answer: B. re-inscribing women into the very caregiving role that trapped them in unequal labour**

**Explanation:** The objection warns care ethics may re-confine women to caregiving.

**Trap/remediation:** Pair this objection with the reply: care should be shared, not confined to women.

**Q35. Marxist feminism locates the root cause of women's subordination in:**

- A. patriarchy as fully independent of economic system

- B. the family as an object of justice
- C. capitalist property relations and women's unpaid reproductive labour
- D. the social contract tradition alone

**Answer: C. capitalist property relations and women's unpaid reproductive labour**

**Explanation:** Marxist feminism derives subordination from capitalist need for unpaid reproductive labour.

**Trap/remediation:** Do not attribute the 'patriarchy as independent system' claim to Marxist feminism.

**Q36. Radical feminism, unlike orthodox Marxist feminism, treats patriarchy as:**

- A. wholly reducible to capitalism
- B. irrelevant to gender discrimination
- C. a purely legal construct
- D. an autonomous system of male domination, independent of class

**Answer: D. an autonomous system of male domination, independent of class**

**Explanation:** Radical feminism treats patriarchy as an independent system of domination.

**Trap/remediation:** Do not conflate radical feminism's independence claim with Marxist feminism's economic reduction.

**Q37. 'Dual systems theory' in socialist feminism proposes that:**

- A. capitalism and patriarchy are two interacting but analytically distinct systems
- B. only capitalism matters
- C. only patriarchy matters
- D. capitalism and patriarchy are identical

**Answer: A. capitalism and patriarchy are two interacting but analytically distinct systems**

**Explanation:** Dual systems theory treats capitalism and patriarchy as distinct, interacting systems.

**Trap/remediation:** Do not treat dual systems theory as a synonym for either pure Marxist or pure radical feminism.

**Q38. Carole Pateman's 'sexual contract' argument claims that:**

- A. the social contract tradition has no gendered assumptions
- B. the social contract tradition presupposes a prior sexual contract subordinating women
- C. women authored the original social contract
- D. the family is outside the scope of justice

**Answer: B. the social contract tradition presupposes a prior sexual contract subordinating women**

**Explanation:** Pateman argues the social contract masks a prior sexual contract subordinating women.

**Trap/remediation:** Do not present the social contract tradition as gender-neutral on Pateman's account.

**Q39. Susan Moller Okin's 'family as an object of justice' argues that:**

- A. justice theories should exempt the family from scrutiny
- B. the family has no bearing on gender equality
- C. Rawlsian justice cannot bracket the unjust internal distribution of power within families
- D. Pateman and Okin hold identical positions

**Answer: C. Rawlsian justice cannot bracket the unjust internal distribution of power within families**

**Explanation:** Okin insists justice must reach inside the family, not stop at its threshold.

**Trap/remediation:** Do not merge Okin's family-justice argument with Pateman's sexual-contract argument -- they are related but distinct.

**Q40. Kimberle Crenshaw's 'intersectionality' shows that caste and gender disadvantage:**

- A. simply add together without producing distinct harm
- B. are entirely unrelated categories
- C. apply only to caste, not gender
- D. compound to produce distinct, structurally located harms not captured by either axis alone

**Answer: D. compound to produce distinct, structurally located harms not captured by either axis alone**

**Explanation:** Intersectionality shows compounded, not merely additive, harm.

**Trap/remediation:** Do not describe intersectional harm as a simple sum of two separate axes.

**Q41. Treating 'women' in the Indian context as a homogeneous category:**

- A. obscures caste-specific harms within gender discrimination
- B. is the correct analytical approach
- C. is required by intersectionality theory
- D. was rejected by Okin but endorsed by Crenshaw

**Answer: A. obscures caste-specific harms within gender discrimination**

**Explanation:** A homogeneous 'women' category masks caste-specific harm.

**Trap/remediation:** On synthesis questions, always disaggregate 'women' by caste position.

**Q42. Susan Moller Okin's question 'Is multiculturalism bad for women?' presses whether:**

- A. all cultures are equally patriarchal
- B. state accommodation of group practices can entrench internal patriarchal norms
- C. multiculturalism should be abolished outright
- D. gender discrimination is unrelated to cultural accommodation

**Answer: B. state accommodation of group practices can entrench internal patriarchal norms**

**Explanation:** Okin's question targets state accommodation entrenching internal patriarchy.

**Trap/remediation:** Do not read Okin as claiming all cultures are equally patriarchal; the question is conditional.

**Q43. The multiculturalist objection to state intervention in group practices for gender equality is that such intervention is:**

- A. always philosophically incoherent
- B. irrelevant to Okin's argument
- C. a form of majoritarian or statist overreach into cultural self-governance
- D. required by Crenshaw's framework

**Answer: C. a form of majoritarian or statist overreach into cultural self-governance**

**Explanation:** The objection frames intervention as overreach into cultural self-governance.

**Trap/remediation:** Pair this objection with Okin's reply on equal citizenship.

**Q44. Okin's reply to the multiculturalist objection is that a state committed to equal citizenship:**

- A. must exempt all group practices from scrutiny
- B. cannot ever intervene in cultural practice
- C. should treat caste and gender as unrelated
- D. cannot consistently exempt any group's internal practice from the equality standard applied elsewhere

**Answer: D. cannot consistently exempt any group's internal practice from the equality standard applied elsewhere**

**Explanation:** Okin denies a consistent basis for exempting any group's internal domination.

**Trap/remediation:** Do not overstate the reply as licensing unlimited state intervention in all cultural practice.

**Q45. The first step in the answer-architecture spine for any gender-discrimination prompt is to:**

- A. decode the directive word (discuss/examine/analyse/critically evaluate)
- B. write a generic Beauvoir-Butler opening regardless of the question
- C. skip straight to the verdict
- D. cite the 106th Amendment regardless of relevance

**Answer: A. decode the directive word (discuss/examine/analyse/critically evaluate)**

**Explanation:** Directive-word decoding is the mandated first step of the spine.

**Trap/remediation:** Avoid a one-size-fits-all opening; always route to the question's actual keyword first.

**Q46. A prompt containing the keyword 'foeticide' should be routed primarily to:**

- A. Session 8
- B. Session 4
- C. Session 2
- D. Session 9

**Answer: B. Session 4**

**Explanation:** Foeticide keywords route to Session 4 per the routing table.

**Trap/remediation:** Do not default to Session 1/2 doctrine for foeticide-specific prompts.

**Q47. A prompt framed around 'socialist regime' and gender equality routes primarily to:**

- A. Session 5
- B. Session 1
- C. Session 8
- D. Session 3

**Answer: C. Session 8**

**Explanation:** Socialist-regime prompts route to Session 8's inter-school feminist debate.

**Trap/remediation:** Do not route socialist-regime prompts to the land/property session.

**Q48. The routing table is best understood as:**

- A. a substitute for original philosophical engagement
- B. irrelevant to exam performance
- C. a fixed set of model answers to memorise verbatim
- D. scaffolding that ensures correct doctrine retrieval, leaving room for objection-reply and verdict

**Answer: D. scaffolding that ensures correct doctrine retrieval, leaving room for objection-reply and verdict**

**Explanation:** The table is scaffolding for retrieval, not a substitute for original engagement.

**Trap/remediation:** Do not treat the routing table itself as the finished answer.

## PYQS AND ANSWER PRACTICE

## VERIFIED PYQS WITH MODEL SOLUTIONS

### PYQ 1 - 2018 · 4(b) (15 marks)

**Question:** How do you evaluate gender discrimination in the context of female foeticide ?

**Thesis / opening:** Female foeticide, the sex-selective abortion of female fetuses, is one of the starkest evidences of gender discrimination because it denies the right to life itself on the basis of sex, prior to any other form of disadvantage a woman might face.

**Model answer structure:**

- Amartya Sen's 'missing women' argument treats skewed sex ratios as an index of systemic discrimination rather than isolated acts. The causal chain runs from son preference (rooted in dowry economics, patrilineal inheritance expectation, and old-age-security norms) through demand for prenatal sex determination to the abortion itself; prenatal technology only supplies the instrument. India's legal response, the PCPNDT Act, 1994, prohibits sex determination for selective purposes, and the Beti Bachao Beti Padhao scheme (2015) supplements it with an awareness and enforcement push, yet the practice persists, which evidences that the underlying discriminatory preference, not the absence of law, is the operative cause.
- Objection: since the law already exists, continued prevalence shows that 'law' rather than 'attitude' is the correct target for reform, and philosophical diagnosis is beside the point. Reply: persistence despite a prohibitory statute is itself evidence that formal equality (a bar on the act) has not reached the underlying substantive attitude (son preference) that motivates evasion of the law -- confirming, not undermining, the discrimination-based diagnosis.

**Conclusion:** Female foeticide should be evaluated as gender discrimination in its most acute form: a denial of existence itself, driven by son preference and only enabled, not caused, by technology; legal prohibition is necessary but the persistence of the practice shows attitudinal, substantive change is the deeper requirement.

**Why this earns marks:** It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

### PYQ 2 - 2018 · 4(c) (15 marks)

**Question:** Is feminism an ideology for empowerment or for equality ? Discuss.

**Thesis / opening:** Feminism is often presented as pursuing either 'equality' (sameness of treatment) or 'empowerment' (capacity to exercise choice), but the equality typology shows these are not rival goals so much as different levels of the same project.

**Model answer structure:**

- Formal equality demands the removal of explicit differential rules; substantive equality goes further, licensing affirmative measures to correct unequal starting points; relational equality asks whether social relationships remain hierarchical regardless of formal rules. Empowerment, on Kabeer's tripartite model, requires resources, agency, and achievements -- it is the process by which formal or substantive equality is actually converted into lived capacity. On this reading, equality supplies the normative target and empowerment supplies the causal mechanism by which that target is reached.
- Objection: treating equality and empowerment as compatible obscures a real tension -- substantive-equality measures (affirmative action) can be attacked as unearned 'empowerment' that violates formal equality for others (the reverse-discrimination objection). Reply: the objection conflates formal and substantive equality; substantive equality does not violate the requirement of equal moral worth, it corrects an unequal starting point so that formal equality's promise can be genuinely realised.

**Conclusion:** Feminism is best read as an ideology for substantive equality achieved through empowerment -- the two are sequentially linked rather than competing final ends.

**Why this earns marks:** It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

### PYQ 3 - 2019 · 1(e) (10 marks)

**Question:** Can gender equality be realised within a socialist regime? Analyse.

**Thesis / opening:** Whether socialism alone can deliver gender equality turns on whether patriarchy is reducible to capitalist property relations (as orthodox Marxist feminism holds) or is an autonomous system of domination (as

radical and dual-systems feminists hold).

**Model answer structure:**

- Marxist feminism derives women's subordination from capitalist need for unpaid reproductive and domestic labour, implying that abolishing capitalism should abolish the subordination. Radical feminism counters that male control operates through sexuality, violence, and reproduction independently of the economic system, a claim empirically supported by the persistence of patriarchal practice within historically socialist states. Socialist/dual-systems feminism proposes that capitalism and patriarchy are two interacting but analytically distinct systems, so that transforming only one leaves the other's mechanisms of domination intact.
- Objection: a Marxist could argue patriarchy is itself historically generated by property relations, so ending those relations should suffice, making the dual-systems addition redundant. Reply: the historical persistence of patriarchal control over sexuality and reproduction across differing modes of production is evidence against reducing patriarchy to a mere epiphenomenon of capitalism, supporting its treatment as an independent target of reform.

**Conclusion:** Gender equality is not automatically realised by a socialist regime alone; the dual-systems view is more defensible, requiring an explicit, separate feminist transformation alongside any economic one.

**Why this earns marks:** It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

**PYQ 4 - 2019 · 3(b) (15 marks)**

**Question:** Consider critically that gender discrimination is a rather man-made concept but not naturally endowed.

**Thesis / opening:** The claim that gender discrimination is 'man-made, not naturally endowed' rests on separating sex (biological) from gender (social meaning), a separation Beauvoir opens and Butler radicalises.

**Model answer structure:**

- Beauvoir's 'one is not born, but rather becomes, a woman' shows gendered meaning is constructed through woman's positioning as Other against a male norm. Butler goes further: gender is produced through performative repetition of stylised acts, with no prior gendered substance behind them -- the doing constitutes the being, within a discursive, regulatory frame, not a biological one. On this account, gender discrimination is man-made in the strong sense that it is continually reproduced through everyday repeated social practice, not dictated by biology.
- Objection (biological-difference objection): reproductive and physiological differences between the sexes are real, so at least some differential treatment reflects nature rather than construction. Reply: real physiological difference does not itself entail any particular social meaning or hierarchy; the inferential leap from difference to inferiority is precisely the cultural, man-made move under scrutiny, not a fact of nature.

**Conclusion:** Gender discrimination is best characterised as man-made: grounded in constructed and performatively reproduced social meaning, not in any natural endowment, though it operates on top of real (but socially non-determining) biological difference.

**Why this earns marks:** It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

**PYQ 5 - 2020 · 4(a) (20 marks)**

**Question:** Do you agree that empowering women can eliminate gender discrimination? Discuss.

**Thesis / opening:** Empowerment is necessary to counter gender discrimination but the claim that it can 'eliminate' discrimination outright overstates what Kabeer's model and the care-ethics/representation record actually support.

**Model answer structure:**

- Kabeer's resources-agency-achievements chain shows empowerment requires more than resource delivery; agency must be exercised to convert resources into real functioning. Even where agency is built, Gilligan's ethic of care flags that empowerment framed only in rights/resource terms can miss relational and care-based dimensions of women's subordination. Political representation illustrates the same gap at the institutional level: the 106th Constitutional Amendment, 2023 enacts legislative reservation for women, but its implementation is conditional on a subsequent delimitation exercise, so legal empowerment can outpace effective empowerment considerably.

- Objection: if empowerment is defined broadly enough (resources + agency + achievements + care recognition + effective representation), then by definition full empowerment would eliminate discrimination, making the claim true by stipulation. Reply: the practical record shows empowerment is realised unevenly and partially (e.g., enacted-but-pending reservation), so as an empirical, non-stipulative claim, elimination is not supported -- empowerment reduces but does not by itself eliminate discrimination.

**Conclusion:** Partial agreement: empowerment is a necessary and powerful corrective, but 'elimination' overstates the case; structural, legal, and attitudinal change must accompany it.

**Why this earns marks:** It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

#### PYQ 6 - 2021 · 1(e) (10 marks)

**Question:** How far can land and property rights be effective in empowerment of women? Explain.

**Thesis / opening:** Land and property rights are effective in empowering women only to the extent that Bina Agarwal's five distinct dimensions -- legal title, access/use, control, return, and exit/security -- produce actual command rather than nominal ownership.

**Model answer structure:**

- The Hindu Succession Act, 2005 amendment gave daughters coparcenary rights (title), later clarified for retrospective application by the Supreme Court in Vineeta Sharma v. Rakesh Sharma (2020) -- a judgment interpreting the statute, not a fresh source of the right. Yet title without practical access to the land, decision-making control over its use, receipt of income and benefit, and fall-back security against abandonment or violence leaves empowerment merely nominal.
- Objection: once law grants equal title, any remaining gap is a social-enforcement problem outside the rights framework's responsibility. Reply: a rights framework that stops at title while ignoring predictable non-implementation at the higher dimensions is philosophically incomplete; access, control, return and exit/security should be built into the specification of the right itself.

**Conclusion:** Land and property rights empower only where the five dimensions yield actual command and a stronger fall-back position; legal title alone is neither necessary nor sufficient for that result.

**Why this earns marks:** It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

#### PYQ 7 - 2021 · 4(b) (15 marks)

**Question:** What are the main causes of female foeticide in India? Is it the result of demonic application of technology only? Discuss.

**Thesis / opening:** The main cause of female foeticide is son preference, not technology; prenatal diagnostic technology is only the instrument through which a pre-existing discriminatory preference is realised.

**Model answer structure:**

- Son preference is rooted in dowry economics, patrilineal inheritance expectations, and old-age-security norms that make sons seem more 'valuable' within the household economy. This preference generates demand for sex determination; technology supplies the means to act on that demand. The PCPNDT Act, 1994 prohibits sex-selective determination, and Beti Bachao Beti Padhao (2015) supplements enforcement and awareness, yet continued prevalence of the practice indicates the demand-side (attitudinal) cause, not the supply-side (technological) one, is decisive.
- Objection: without the technology, sex-selective abortion at scale would not be possible, so technology is causally indispensable and should not be downplayed. Reply: indispensability as an instrument is not the same as being the cause; removing the technology would suppress this particular method but, absent addressing son preference, would not remove the underlying discriminatory motive, which could seek other outlets (e.g. differential post-natal neglect).

**Conclusion:** No -- it is not the result of technology alone; son preference is the operative cause, with technology as instrument, so reform must target the underlying preference, not merely restrict the tool.



**Why this earns marks:** It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

**PYQ 8 - 2022 · 3(b) (15 marks)**

**Question:** Discuss gender as a cultural category as opposed to sex as a biological category.

**Thesis / opening:** Sex names a biological fact; gender names the socially constructed meaning attached to that fact, a distinction Beauvoir opens and Judith Butler's account of performativity deepens into a full cultural-category theory.

**Model answer structure:**

- Butler's Gender Trouble argues gender is constituted through performative repetition of stylised acts within a regulatory, discursive frame -- there is no gendered substance prior to or behind the repeated acts. This treats gender as thoroughly cultural: produced, disciplined, and reproduced through social practice, in contrast to sex, which denotes a biological given. The cultural-category reading explains variation across societies and time in what counts as masculine or feminine, which a purely biological account cannot.
- Objection (essentialism objection): without any stable pre-discursive sex or subject, feminism risks losing the category 'woman' in whose name it claims to act, undermining political solidarity. Reply: Butler allows a provisional, strategic use of 'woman' as a shared discursive position for political purposes, which does not require metaphysical essence, only a shared position worth contesting.

**Conclusion:** Gender is best treated as a cultural category, continuously produced through social practice, standing in contrast to (but not simply derived from) sex as a biological category.

**Why this earns marks:** It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

**PYQ 9 - 2023 · 1(c) (10 marks)**

**Question:** Do you agree that the rights concerning land and property have empowered women? Discuss.

**Thesis / opening:** Partial agreement is warranted: statutory land and property rights have advanced women's legal standing but have not, by themselves, delivered full empowerment on Agarwal's five-level analysis.

**Model answer structure:**

- The Hindu Succession Act, 2005 amendment secured coparcenary title for daughters, and the Supreme Court in Vineeta Sharma v. Rakesh Sharma (2020) clarified its retrospective application -- both strengthen the legal-title dimension. However, access, control, return and exit/security may remain with male relatives in practice, so title is not reliably converted into actual command or bargaining power.
- Objection: since the statutory right now exists in full, any shortfall is a matter of implementation, not of the rights regime's design. Reply: a rights regime that predictably fails to reach the access, control, return and security dimensions bears responsibility for building enforcement and social-change mechanisms into the right itself, not treating implementation as someone else's problem.

**Conclusion:** Land and property rights have empowered women at the level of legal title, but empowerment remains incomplete until access, control, return and exit/security are also secured in practice.

**Why this earns marks:** It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

**PYQ 10 - 2023 · 3(c) (15 marks)**

**Question:** How does gender discrimination lead to female foeticide and social imbalance? Discuss.

**Thesis / opening:** Gender discrimination, expressed as son preference, is the root cause that channels through prenatal technology into female foeticide, and the resulting skew feeds back into broader social imbalance.

**Model answer structure:**

- Son preference -- shaped by dowry economics, inheritance expectation, and old-age-security norms -- generates demand for sex determination and selective abortion despite the PCPNDT Act, 1994's prohibition. Amartya Sen's 'missing women' argument treats the resulting skew in sex ratio at birth as an index of systemic discrimination. This skew in turn produces social imbalance: distortions in marriage markets, and compounding pressure on the sex ratio in subsequent generations, entrenching the very discrimination that caused it.



- Objection: attributing imbalance to discrimination overlooks individual family economic calculation, which may be a rational response to real economic constraints, not 'discrimination' in a normatively loaded sense. Reply: a 'rational' calculation that treats daughters as economically less worth having than sons is not thereby exempt from being discriminatory -- rational responses to a discriminatory background structure remain instances of that discrimination, not independent of it.

**Conclusion:** Gender discrimination causally leads to female foeticide via son preference, and the resulting sex-ratio skew produces self-reinforcing social imbalance -- a feedback loop, not a one-off harm.

**Why this earns marks:** It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

#### PYQ 11 - 2024 · 4(a) (20 marks)

**Question:** Discuss gender equality as a necessary condition to achieve empowerment of women. Also examine the role of women empowerment in curbing the menace of female foeticide.

**Thesis / opening:** Gender equality is a necessary, though not sufficient, condition for empowerment, and empowerment in turn can help curb female foeticide by weakening the son-preference logic that drives it.

#### Model answer structure:

- Part one: on Kabeer's model, resources delivered under unequal background norms rarely convert into agency, since unequal treatment constrains what choices are practically available or socially permitted -- so a baseline of gender equality is a precondition for empowerment's agency and achievement stages to function. Part two: empowered women, with greater agency over reproductive and household decisions, are positioned to resist son-preference pressure, and the record (PCPNDT Act 1994, Beti Bachao Beti Padhao 2015) shows policy pairs legal prohibition with empowerment-style awareness measures precisely because empowerment complements, rather than replaces, legal deterrence.
- Objection: empowerment interventions could fail to reduce foeticide if son preference is driven by deep economic structures (dowry, inheritance) that individual agency cannot override. Reply: while individual agency cannot dissolve structural drivers alone, empowered women collectively reshape norms and demand policy change over time, so empowerment operates as a necessary complement to, not a substitute for, structural and legal reform.

**Conclusion:** Gender equality is necessary for genuine empowerment, and empowerment meaningfully contributes to curbing female foeticide, but neither alone is sufficient absent the structural and legal measures addressed in Sessions 4 and 5.

**Why this earns marks:** It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

#### PYQ 12 - 2025 · 1(b) (10 marks)

**Question:** How does gender as a social construct affect individuals' opportunities, rights, and access to resources? Critically discuss.

**Thesis / opening:** Gender, as a social rather than biological construct in Beauvoir's and Butler's sense, shapes the opportunities, rights, and resource access individuals are granted or denied well before any individual merit is considered.

#### Model answer structure:

- Once woman is constructed as Other (Beauvoir) and gender is reproduced through performative repetition (Butler), that constructed meaning is used to justify differential access: to education and employment (opportunity), to inheritance and representation (rights, per Sessions 5 and 7), and to land, credit, and property (resources, per Session 5's five-level analysis). Because the construction is social rather than natural, the resulting inequality is a matter of formal versus substantive equality (Session 3) rather than an unavoidable fact of nature.
- Objection: if gender is 'only' a construct, one could argue the resulting disadvantage is not 'real' in the way material biological constraint is real, understating the urgency of reform. Reply: constructed does not mean unreal or trivial -- socially constructed disadvantage has entirely real material consequences (land denial, foeticide, exclusion from representation), and being constructed is precisely what makes it remediable through social and legal change.

**Conclusion:** Gender as a social construct systematically structures unequal opportunity, rights, and resource access; its constructed status is a reason for urgency and remediability, not for dismissal.

**Why this earns marks:** It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

## ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

### Original Mains 1 - 10 marks

**Question:** Distinguish formal equality from substantive equality and examine which better addresses gender discrimination in India.

**Model solution:**

- Formal equality removes explicit differential rules; substantive equality additionally corrects unequal starting points through targeted measures.
- Formal equality alone risks equal treatment of unequals, reproducing existing disadvantage where women start from a structurally weaker position (in land rights, political representation, or labour-force access). Substantive equality responds by permitting affirmative measures calibrated to that unequal starting point.
- Objection: substantive measures invite the reverse-discrimination charge against men. Reply: correcting a structural disadvantage is not equivalent to creating a new one; the measure targets a starting-point gap, not an arbitrary preference.
- Substantive equality better addresses gender discrimination in India precisely because formal legal parity already exists in many domains while real disadvantage persists.

### Original Mains 2 - 10 marks

**Question:** Explain Naila Kabeer's criterion of empowerment through resources, agency, and achievements, with an Indian illustration.

**Model solution:**

- Kabeer defines empowerment as the process of acquiring the ability to make strategic life choices, structured through resources, agency, and achievements.
- Resources (material, human, social) are preconditions; agency is the exercised capacity to define and act on goals; achievements are the resulting functioning outcomes. A land-title scheme for women illustrates the chain: title is a resource, but only where the woman also exercises control over its use does an achievement (improved bargaining position) follow.
- Objection: the model risks being too demanding, since almost no scheme perfectly builds agency. Reply: the model is diagnostic -- it identifies precisely where a scheme's empowerment claim breaks down, rather than issuing a blanket pass/fail verdict.
- Kabeer's model shows that resource delivery without agency is empowerment in name only; Indian schemes must be assessed against all three links in the chain.

### Original Mains 3 - 15 marks

**Question:** Does Judith Butler's theory of gender performativity dissolve the sex/gender distinction? Critically examine.

**Model solution:**

- Butler's performativity thesis pushes the sex/gender distinction further than Beauvoir by denying any gendered substance prior to repeated performative acts, raising the question of whether the distinction survives at all.
- If gender is wholly constituted through performative repetition within a discursive frame, 'sex' as a supposedly raw biological given is itself, on Butler's later argument, already discursively mediated -- suggesting the sex/gender boundary is not a clean binary but a matter of degree.
- Objection: if even sex is discursively constructed, the distinction collapses entirely, leaving no stable ground for feminist politics or for talking about 'women' as a group. Reply: Butler's own answer is that a provisional, strategic use of 'woman' remains available without requiring a metaphysically fixed sex/gender boundary -- the distinction's political utility does not depend on its metaphysical purity.

- Performativity does not so much dissolve the sex/gender distinction as radicalise it, showing both terms to be more thoroughly constructed than Beauvoir's original account suggested, while preserving a workable, strategic distinction for political purposes.

#### Original Mains 4 - 15 marks

**Question:** Compare Marxist and socialist feminism on the relationship between capitalism and patriarchy.

**Model solution:**

- Marxist and socialist feminism share a materialist starting point but diverge on whether patriarchy is reducible to capitalism or must be treated as an independent system.
- Marxist feminism derives women's subordination from capitalist need for unpaid reproductive and domestic labour, implying patriarchy would recede with capitalism's abolition. Socialist feminism's dual-systems move instead treats capitalism and patriarchy as two interacting but analytically distinct systems, each requiring separate transformation.
- Objection: a Marxist could argue treating patriarchy as independent is analytically redundant if it historically arose from property relations. Reply: patriarchal control over sexuality and reproduction has persisted across different modes of production, including socialist states, which is evidence against reducing it to a mere epiphenomenon of capitalism.
- The dual-systems (socialist feminist) position is more defensible: it explains persistence of patriarchy even where capitalism has been substantially transformed, which orthodox Marxist feminism struggles to accommodate.

#### Original Mains 5 - 20 marks

**Question:** "Legal title to property, without control over it, does not empower women." Examine this statement using Bina Agarwal's framework.

**Model solution:**

- Agarwal's five-level analysis -- legal title, access/use, control, return and exit/security -- shows why legal title alone is an incomplete basis for claiming empowerment.
- India's legal record secures the title rung through the Hindu Succession Act, 2005 amendment, with the Supreme Court's Vineeta Sharma v. Rakesh Sharma (2020) clarifying its retrospective scope. Yet without practical access to the land, decision-making control over its use, receipt of its income and benefit, and fall-back security against abandonment or violence, a woman's title remains largely nominal -- the family's effective decision-making can remain entirely with male relatives despite her legal ownership. A further, illustrative example of courts extending inheritance-equality reasoning is Ram Charan & Ors. v. Sukhram & Ors., [2025] 8 S.C.R. 272 (2025 INSC 865, decided 17 July 2025), which held that absent a proven custom excluding female inheritance among Scheduled Tribes, denying a tribal woman an equal ancestral-property share is arbitrary; this is cited only as an illustration of the same title/control problem in a further community context, not as an extension of Vineeta Sharma's coparcenary doctrine, which applies within the Hindu Succession Act framework.
- Objection: once law grants equal title, any remaining gap is a matter of social enforcement, not a flaw in the rights framework itself. Reply: a rights framework that predictably stops at title while ignoring foreseeable non-implementation across the other dimensions is philosophically incomplete; access, control, return and exit/security should be designed into the specification of the right, not treated as a separate implementation problem.
- The statement is substantially correct: legal title is neither necessary nor sufficient for actual command; empowerment requires access, control, realised return and a stronger fall-back position across Agarwal's full analysis.

#### Original Mains 6 - 20 marks

**Question:** Examine the disagreement between Carole Pateman's 'sexual contract' and Susan Moller Okin's critique of the family as an object of justice.

**Model solution:**

- Pateman and Okin both extend feminist critique into liberal political theory's foundations, but target different structures: Pateman the social-contract tradition itself, Okin the Rawlsian treatment of the family.

- Pateman argues the social contract tradition's story of free and equal contractors presupposes and masks a prior 'sexual contract' subordinating women, so the entire contractarian framework is compromised at its foundation. Okin, working more immanently within Rawlsian justice, argues that a theory of justice cannot consistently bracket the family as a private, pre-political sphere while claiming to regulate the basic structure of society, since the family is itself a site of unequal power distribution.
- Objection: Okin's immanent critique, working within Rawls, might be thought to concede too much to liberal contract theory that Pateman would reject at the root. Reply: the two critiques are complementary rather than contradictory -- Pateman exposes the contract tradition's founding assumption, while Okin shows that even accepting a broadly Rawlsian framework, justice cannot stop at the household's threshold; both converge on the conclusion that the family cannot be exempted from justice's scope.
- Pateman and Okin disagree on where the critique must begin (the contract's origin vs. the scope of a given theory of justice) but converge on the substantive conclusion that liberal political theory cannot treat the family as outside the reach of justice.